

CHAPTER 9

Evaluating the Pacifist Alternative

But I tell you not to resist an evil person. Whoever slaps you
on your right cheek, turn the other to him also.

Jesus, Matthew 5:39

“He shall judge between many nations, and rebuke strong
nations afar off; they shall beat their swords into ploughshares,
and their spears into pruning hooks; nations shall not lift up
sword against nation, neither shall they learn war anymore.”

Micah, 4:3

There are many kinds of pacifism. It is not my task here to diagnose and describe all of them. Different pacifists define pacifism differently, and offer various kinds of justification for their beliefs. But it seems that what unites all forms of pacifism—the basic proposition, or lowest common denominator—is opposition to warfare. The logical core of pacifism, as Jenny Teichman says, is “anti-war-ism.”¹ No matter what kind of pacifist you are, you believe that *war is always wrong*; there is always some better approach to the problem than warfare. So, unlike realists, pacifists believe that it is possible and meaningful to apply moral judgment to international affairs. In this, they agree with just war theorists. But they disagree with just war theorists regarding the application of moral judgment to warfare. Just war theorists say war is *sometimes* morally permissible, whereas pacifists say war is *never* morally permissible.

Jim Sterba has attempted to mesh just war theory and pacifism into what he calls “just war pacifism,”² and he has collected some support in this regard. But I don’t buy it. It is a strange kind of pacifist, after all, who can endorse warfare. If they do endorse warfare under just war conditions, then I suggest that ... they are just war theorists! Sterba’s proposal does not integrate, so much as assimilate, pacifism into just war theory. The conceptual kernel of both theories, in my view, cannot be reconciled—the one says warfare *can* be permissible, and then defines those conditions, whereas the other says, *regardless* of the conditions, war *cannot* be morally justified. Quite literally and straightforwardly, a pacifist rejects war in favour of peace. It is not violence in all its forms to which the most challenging kind of pacifist objects; rather, it is the specific *kind and degree of violence that war involves* to which the pacifist objects. A pacifist objects to killing (not just violence) in general and, in particular, he objects to the mass killing, for political reasons, which is part and parcel of the wartime experience. So, a pacifist rejects

war; he believes that there are no moral grounds which can justify resorting to war. War, for the pacifist, is always wrong.³

Having come to a working definition of pacifism as anti-war-ism, we can now consider some of the reasons offered in its favour. Many such reasons have been offered but not all of them are appropriate to our concern. For example, many pacifists are so for religious reasons. Christians and Buddhists, in particular, have vibrant pacifist sects, such as the Quakers. They base their beliefs on sacred scriptures and a drive to be more like the divine, whom they view as essentially peaceful. Christians, for example, point to Jesus' life and teachings as disclosed in the New Testament. These do indeed, at first glance, seem to recommend something very much like pacifism. Consider the quote above, and the other important imperative to love even your enemies.⁴ Jesus also says that he is "gentle and humble in heart" and he refuses to use force to resist his arrest, telling his disciples: "Put your sword back into its place; for all who take the sword will perish by the sword."⁵ But this—like much else in religion—is hotly contested. For example, we saw in Chapter 1 that just war theory has historically been associated with, and supported by, the Catholic Church—so clearly the Church doesn't think pacifism is mandated by the New Testament. I will not delve further into religious justifications for pacifism because they rest on beliefs—about God and Scripture, souls and the afterlife—which simply are too personal, speculative, contentious and even exclusionary. I direct the reader to the relevant literature for more on the religious perspective.⁶

This book will stick to secular justifications for pacifism, which try to appeal to *any* rational person *regardless* of religious affiliation. The most relevant pro-pacifist arguments here include the following: 1) a more "teleological" form of pacifism (or TP), which asserts that war and killing are at odds with human excellence and flourishing; 2) a more "consequentialist" form of pacifism (or CP), which maintains that the benefits accruing from war can never outweigh the costs of fighting it; and 3) a more "deontological" form of pacifism (or DP), which contends that the very activity of war is intrinsically unjust, since it violates foremost duties of morality and justice, such as not killing other human beings. Most common and compelling amongst contemporary secular pacifists, such as Robert Holmes and Richard Norman, is a mixed doctrine which combines, in some way, all three.⁷

Before describing in detail—and ultimately overthrowing—TP, CP and DP, mention should be made of a very popular criticism of pacifism which will not here be employed. This criticism is that pacifism amounts to an indefensible "clean hands policy." The pacifist, it is often said, refuses to take the brutal measures necessary for the defence of himself or his nation for the selfish sake of maintaining his own inner moral purity. It is argued that the pacifist is thus a kind of free rider on the rest of us, gathering all the benefits of citizenship while not sharing all its burdens. The pacifist is not willing to

fight, yet gains security from those who are. Not only is the pacifist ungrateful for this, he actually looks down his nose, morally, at those who have provided him with his security. The picture is of a rather unlikeable, holier-than-thou, selfish free rider. A related inference drawn is that the pacifist can actually be an internal threat to the overall security of the state, because his non-participation and objection diminishes the state's resources and resolve in fighting.

This "clean hands" argument is easily, and frequently, overstated. It is important to note that, to the extent to which *any* moral stance will commend a certain set of actions deemed morally worthy, and condemn others as being reprehensible, the "clean hands" criticism can be so malleable as to apply to any substantive moral and political doctrine. *Every* moral and political theory stipulates that one ought to do what it deems good or just, and to avoid what it deems bad or unjust. The very point of morality itself, we might say, is to help keep one's hands "clean." So this popular just war criticism of pacifism is not especially appealing. Besides, the very idea of a selfish pacifist simply does not ring true: many pacifists have, historically, paid a very high price for their pacifism during wartime (through severe ridicule, job loss, ostracism and even jail time), and their pacifism seems less rooted in regard for inner moral purity than it is in regard for constructing a less violent and more humane world order.⁸ So, this argument against pacifism seems to fail; but others, now to be discussed, succeed in questioning the plausibility of its core principles, at least relative to those of just war theory.

Describing and Criticizing TP

Teleology is a perspective on the nature of morality itself. Literally meaning "the study of purpose," teleology often now gets referred to as a form of "virtue ethics." Virtue ethicists, such as Aristotle, believe that human beings must live their lives trying to develop their faculties to the fullest extent. This, for them, is the purpose (or *telos*) of life. Of course, we have many faculties to develop: intellectual; physical; social; moral; and so on. What does it mean to develop one's *moral* capacity to the fullest? It is to pursue ethical excellence, which is displayed by the virtues (hence "virtue ethics"). What are the virtues? They are freely-chosen character traits which we praise in others. We praise them because: 1) they are difficult to develop; 2) they are corrective of natural deficiencies (e.g., industriousness is corrective of our tendency to be lazy); and 3) they are beneficial both to self and society.⁹

There are many virtues, and a moral person is one who develops them and consistently displays them over time. The ancient Greeks listed four "cardinal virtues," namely, wisdom, courage, moderation and justice, and Christian teaching is well-known for its recommendation of faith, hope, charity and love. Other prominent virtues include honesty, helpfulness, forgiveness, pleasantness, consistency, tolerance, modesty, thoughtfulness, and so on. For the human vices, simply negate the above.

The essence of TP is this: when we think of warfare and war-fighting, we see that none of this is praiseworthy activity. Violence, killing and blood-shed are not virtuous activities; they seem clearly at odds with the kind of ideal life—a fully realized and excellent human life—which is the focus of virtue ethics. War is not part of any sane person's idea of a flourishing life. Warfare causes terrible pain and suffering, and the infliction of violence brutalizes the victim and corrupts the character—making it hard and insensitive—even of the inflictor. A TP pacifist would also suggest that, although some aspects of courage might, admittedly, be called upon in war, just as common is the experience of post-traumatic stress disorder, which reduces the formerly strong soldier to a broken shell. Moreover, which is truly more courageous: fighting, or refusing to fight in spite of the danger? There are a number of sharp questions here: is war truly a wise choice? A moderate and humane one? One expressive of hope and charity, instead of hatred and malice? Doesn't war, as a destroyer, seem the opposite of creativity and life? How can war be consistent with love? Indeed, doesn't all this show that *peace itself is a virtue*—part of the human ideal—and that, although it might be very difficult, it is in pursuit of peace that we must orient our thoughts and actions?

There *is* something to TP, just as there is something in every major doctrine on the ethics of war and peace. But there are problems. The major one is whether the commitments of the pacifist are utopian (i.e., excessively unrealistic). War might be a nasty business which, ultimately, calls forth more vice than virtue. But it might also simply be needed to defeat an aggressor who is not moved by pacifist ideals. A world where aggressors are allowed to triumph, and then to inflict rights-violating brutality, is not part of any sane person's idea of the best life, either. And there is something to be said, in the case of a just war, for: the virtues of defending one's people (or fellow citizens) from aggression; the courage it takes to confront an aggressor; the self-discipline it takes to fight justly; and the strength and ingenuity it takes to formulate and execute a successful war plan. More generally, *justice is also a virtue*, and a major one at that. Much of the dispute has to do with different perspectives on what to do when the world puts us in situations where the virtues of peace and justice are in conflict, and cannot both be realized. Where just war theorists differ from pacifists is that they suspect that there can be cases where justice does not include peace or, more precisely, where peace includes or creates injustice. Consider that just war theorists, like Michael Walzer, argue that, by failing to resist international aggression with effective means, pacifists end up *rewarding* aggression and *failing* to protect people—fellow citizens—who need it.¹⁰

Pacifists reply to these just war arguments by contending that we do not need to resort to war in order to protect people and to punish aggression effectively. In the event of an armed invasion by an aggressor state, an organized and committed campaign of non-violent civil disobedience—perhaps combined with international diplomatic and economic sanctions—would be

just as effective as war in expelling the aggressor, with much less destruction of lives and property. After all, the pacifist might say, no invader could possibly maintain its grip on the conquered nation in light of such systematic isolation, non-co-operation and non-violent resistance. How could it work the factories, harvest the fields, run the transportation network, staff the stores and banks, when everyone would be striking, refusing to comply or quietly sabotaging orders? How could it maintain the will to keep the country in the face of crippling economic sanctions and diplomatic censure from the international community? And so on. Jack DuVall and Peter Ackerman have detailed many actual, historical cases of non-violent resistance around the world; Robert Holmes and Gene Sharp, amongst others, have developed the abstract non-violent tactics which pacifists might rely on.¹¹ Consider the following list of tactics offered by Sharp:

... general strike, sit-down strike, industry strike, go-slow and work to rule ... economic boycotts, consumers' boycott, traders boycott, rent refusal, international economic embargo and social boycott ... boycott of government employment, boycott of elections, revenue refusal, civil disobedience and mutiny ... sit-ins, reverse strikes, non-violent obstruction, non-violent invasion and parallel government.¹²

Though one cannot exactly disprove this pacifist proposition—since it is (conveniently?) a counter-factual thesis—there are powerful reasons to agree with John Rawls that this is “an unworldly view” to hold. For the effectiveness of these campaigns of civil disobedience *relies on the standards and scruples of the invading aggressor*. But what if the aggressor is utterly brutal and ruthless? What if, faced with civil disobedience, the invader “cleanses” the area of the native population, and then imports its own people from back home? It is hard to strike, or sabotage orders, if one is dead. And what if, faced with economic sanctions and diplomatic censure from a neighbouring country, the invader decides to invade *it*, too? We have some indication from history, particularly that of Nazi Germany, that such pitiless tactics are effective at breaking the will of even very principled people to resist. The defence of our lives and rights may well, against such heartless invaders, require the use of political violence. Indeed, under such conditions, as Walzer says, adherence to pacifism might even amount to a “disguised form of surrender.” He thinks that, in such instances, if one truly believes in values like “resisting aggression effectively” and “protecting oneself and fellow citizens from aggression,” then one should be willing to fight for them—because, in such cases, *fighting holds the only realistic prospect of actually defending these values*. Unwillingness to fight here means non-support for these values. But how can you not want to protect people, and resist aggression effectively?¹³

Pacifists respond to this accusation of “unworldliness” by citing what they believe are real world examples of successful non-violent resistance to aggression. Examples most often mentioned include: 1) Mahatma Gandhi's

campaign to drive the British Imperial regime out of India in the late 1940s, leading to the independence of modern India; and 2) Martin Luther King Jr.'s civil rights crusade in the 1960s on behalf of African-Americans.¹⁴ Walzer replies curtly that there is no evidence that non-violent resistance has ever, *of itself*, succeeded. This may be a bit rash on his part, though it is clear, for example, that Britain's own exhaustion, financial and otherwise, after World War II had much to do with the evaporation of its Empire and the independence of India. Walzer's main counter-argument, against these so-called counter-examples, is that *they only illustrate his point*: that effective non-violent resistance depends upon the scruples of those it is aimed against. It was only because the British and the Americans had some scruples and standards, and were in the end moved morally by the determined idealism of the non-violent protesters, that they acquiesced to their demands. *But aggressors will not always be so moved*. It might seem unthinkable to us, but a tyrant like Hitler, for example, might interpret non-violent resistance as disgusting weakness, deserving contemptuous crushing. "Non-violent defence," Walzer suggests, "is no defence at all against tyrants or conquerors ready to adopt such measures."¹⁵

To those pacifists who retort that even Hitler was faced with his own non-violent resistance, namely in Scandinavia after he conquered those lands in 1940, the point must be made that the problems that the Swedes, Norwegians and Danes put in his way because of their strikes, sabotage and protest cannot really, in my view, be considered *successful* acts of pacifist resistance to aggression. They happened, after all, *after* Hitler had already conquered those lands—so how were they helpful in resisting the aggressive take-over of their territory and political systems? Second, perhaps the reason why the Nazis didn't crush these Scandinavian protest movements were: 1) they had already conquered Scandinavia and didn't consider these protests a serious threat to their control; and 2) they now had bigger fish to fry, like England, Russia and America. Thirdly, and speaking of the major powers, *they* were the ones who beat Hitler—with force—resulting amongst other things in the liberation of Scandinavia. It was not home-grown pacifist protest which got the Nazis out of Stockholm, Oslo and Copenhagen; it was the decisive military defeat of Germany by the remaining Allies. This is not to deny the fact that Scandinavian resistance *did* cause problems for the Nazis, that it did bolster the spirits of the locals, and that the co-ordination required was impressive and the acts often ingenious. It is, rather, to put them into their proper perspective as smart and bracing tools of resistance but not, ultimately, as tools successful in rolling back aggression.¹⁶

Walzer puts the whole issue persuasively when he says that the idea of an effective "war without weapons," much less a world without war, is (for now) a "messianic dream." For the foreseeable future, and in the real world we all inhabit, it is better to follow just war theory, which is committed to an effective yet principled use of defensive armed force in the face of aggression.

The constraints on violence established by just war theory are, in fact, the necessary conditions for the more peaceful world which pacifists mistakenly believe is already within sight. “The restraint of war,” Walzer concludes, “is the beginning of peace.”¹⁷

Describing and Criticizing CP

Consequentialism is another fundamental world view regarding ethics. As the name indicates, the core focus of consequentialism is on the concrete results of one’s actions. This tradition is sceptical of the value of focusing on personal character traits, as teleology does, or on abstract universal rules, as we’ll see deontology does. The key, ethically, is whether the world ends up better as a result of one’s actions. The proof is in the pudding: the right thing to do, in every instance, is to perform that action which is going to have the best contribution to the world’s welfare. So consequentialism involves a serious attempt to predict the costs and benefits of one’s options, and then a mandate to act in accord with the one promising the highest “payoff”—in terms of pleasure, happiness or welfare—to the world at large.¹⁸ The CP element of contemporary pacifism, accordingly, is the notion that the costs of war always outweigh the benefits from undertaking war. One does not need to be a military historian to get the point, namely, that war is incredibly destructive, brutal and often deeply inhumane. And the benefits, if any, of wars are often seriously unclear and are soon overtaken, in any case, by the flow of historical events. As the famous song asks: “War, what is it good for?” The CP pacifist agrees with the next line, “Absolutely nothing!”

The first critical question to raise here, by way of response, is: what kind of costs and benefits are being appealed to here? Short-term or long-term costs and benefits, or both? Prudential or moral costs and benefits, or both? And costs from whose point of view? And so on. There is a lack, in the literature, of a detailed breakdown of war’s costs and benefits; pacifists prefer instead to gesture towards very general—almost clichéd—understandings of war’s destructiveness, such as those just offered in the last paragraph. Could this tendency towards sweeping generality and abstraction exist due to a lack of confidence in the results of a more finely grained analysis?

One important element to note, in this regard, is that we have to consider not only the explicit costs of war action (i.e., both military and civilian casualties, the costs of deployment, and the destruction of property), but also the implicit costs of war *inaction*: not resorting to war to defend political sovereignty and territorial integrity may well be tantamount to rewarding aggression in international relations. The lack of armed resistance and forceful punishment allows the aggressor state to keep the fruits of its campaign, thereby augmenting the incentives in favour of future aggression. To what extent can we have a well-functioning and stable—much less a just—international system in which aggression between nations is thus rewarded? Call

this the “macro-cost of war inaction”: the rewarding of interstate aggression, which leads to the long-term weakening of the interstate system of peaceful dispute-resolution. The thought experiment becomes more grim for pacifism when we think not just of classical cross-border wars but of potential humanitarian interventions. The costs of inaction here—as we tragically witnessed in Rwanda in 1994—are not simply sovereignty and land but literally hundreds of thousands of lives.

We must also talk of the “micro-costs” of not resorting to war to defend one’s own populace from an aggressive invader. Such a pacifist strategy seems, at the very least, to run enormous risks with the safety and well-being of one’s people, not to mention their right to be self-governing and not subject to a conquering regime. In light of this, we should ask: does pacifism make sense at the level of collective agents, like states, *especially* if those collective agents are charged with the responsibility of protecting and serving their citizen members? Is there too great a reliance, by the pacifist, on the intuitive appeal of the interpersonal case (of not killing another individual), as opposed to the analogous, yet different, inter-national case? In other words, pacifism at the level of the individual—the conscientious objector, for instance—seems much more plausible and principled than advocating that an entire state be geared along pacifist lines, *especially given the status quo of the international arena* (as the realist would remind us). Again, the risks to one’s people would be huge, and so it is deeply unclear whether a prudent, or moral, government ought to adhere to such a view. Just war theorists believe that it should *not* do so: one of the core functions of the state, after all, is to provide reliable protection from serious, standard threats to our human rights, one of which is armed invasion by an aggressor regime. It is compelling to conclude that states ought to be prepared to enforce that protection, through armed force if necessary.¹⁹

The combination of both the macro- and the micro-costs of *failing* to resort to war (in situations otherwise well-defined by just war criteria) are sufficient at least to cast doubt on whether war-fighting can *only* result in greater negative, than positive, consequences. It is very simple to cluck one’s tongue and shake one’s head at the destruction of warfare—“War is bad!”—and quite another to *think through the costs of pacifism* and what they might involve relative to just war theory. Being against war, after all, can be like being in favour of motherhood—a “no-brainer” that no one in her right mind would disagree with. But it is different for those with responsibility to protect their people, especially when threatened by a terrible aggressor who relishes warfare and conquest.

We might also, in our consideration of CP, consider the historical record. I am fully prepared to concede that many—perhaps even most—historical wars can be questioned, very forcefully, by the CP aspect of contemporary pacifism. World War I seems a fitting example of the futility, waste and sheer human tragedy of many wars our ancestors fought. But not all wars seem to fall neatly under this objection. World War II, for instance, is much more

debatable. Many thoughtful people, including participants who actually made the sacrifices, have argued—appealing to both prudential and moral costs—that defeating ultra-aggressive regimes like Nazi Germany, Fascist Italy and Imperial Japan was worth the costs of fighting the war, as enormous as those admittedly were. Can we, they ask, imagine and endorse what our world would currently look like had the Nazis been allowed to conquer Europe and rule it, had Mussolini spread his “New Roman Empire” beyond Ethiopia, and/or had Imperial Japan been allowed to subdue most of East Asia? George Orwell’s searing image of a soldier’s boot stomping on a human face comes to mind. World War II didn’t create a wonderful world—the world of our dreams—but it did prevent a truly terrible world from coming into being. It also ushered in many international improvements—the spread of democracy, the creation of the United Nations, the growth of international law and respect for human rights—which have made the modern world a more humane place.²⁰

A third issue to raise, with regard to CP, focuses on the relationship between consequentialism and the denial of killing, especially on the level which is endemic to warfare. Pacifism places great, perhaps overriding, value on respecting human life, notably through its usual injunction against killing. But this core pacifist value seems to rest uneasily with the appeal to consequentialism in CP. For there is nothing to a *consequentialist* approach to the ethics of war and peace which would *always* outlaw killing. There is here no firm principle that one must never kill another person, or that nations ought not to launch military campaigns which kill thousands of enemy soldiers. With consequentialism, it is always a matter of considering the latest costs, benefits and circumstances. Consequentialism was actually first designed, quite explicitly, to be flexible in a way in which teleology and deontology are not. (Note the difference between consequentialism and realism: while both appeal to cost-benefit utilities, consequentialism remains an ethical doctrine focused on the world’s overall improvement whereas realism is a doctrine sceptical of ethics and thus featuring strong commitments only to one’s own selfish benefit.)

When considering whether or not one should kill another human being, consequentialism will typically appeal to the pain and suffering such killing will cause both the victim and her friends and family—not just in terms of the loss of life but also in terms of the loss of further, future life experiences. Appeal will also be made to a more universal (or legislative) point of view, and contention made that permitting or mandating killing is a bad precedent which might lead to loss of respect for human life, and thus to serious insecurities within the community, and so on. These are all excellent and powerful points to be made against killing another human being. The remaining problem, though, is that a consequentialist approach to the injunction against killing and war does not seem to come with *the kind of firmness* which the pacifist needs to ground his categorical contentions. The pacifist isn’t just

committed to saying that, *usually*, killing and warfare are a bad idea; he wants to say, much more strongly, that killing—or at least war—is *always* wrong. Can consequentialism deliver that kind of absoluteness?²¹

Since it is always a matter of choosing the best option amongst feasible alternatives, consequentialism clearly leaves conceptual space open to the claim that under *these* conditions, at *this* time and place, and given *these* possible alternatives, killing and/or war seem(s) permissible. There can be particular counter-examples, some offered above, wherein the calculations may well come out the other way. After all, what if killing 3,000 people (say, some members of an invading army) seems necessary to save the lives of 9,000 people (say, people of one's nation who would die from the rights-violating activities of the unchecked invader, as it sought to consolidate its rule)? It is at least possible to conceive that a quick and decisive resort to war can be employed effectively to prevent even greater suffering, killing and devastation in the future. Indeed, military and political historians often engage in this thinking, and sometimes claim things like "Had the Allies confronted Hitler after Austria, it wouldn't have taken so long, later, to defeat Germany. Appeasement made the war longer and more destructive." To put it plainly, it seems rather bizarre for the *consequentialist* pacifist, whose principles exhibit a profound abhorrence for killing people, to be willing in such a scenario to allow *an even greater number of people to be killed* by acquiescing in the violence of others less scrupulous. Two related points are being made here: 1) the general point that the CP element of pacifism does not, of itself, seem to ground the categorical rejection of killing and war which is the very essence of pacifism; and 2) the particular point that CP seems open to counter-examples (like World War II) which question whether consequentialism would even reject killing and war at all in certain conditions. Consequentialism might actually *recommend* warfare, if the circumstances were dark enough and the other options limited enough.²²

Describing and Criticizing DP

Deontology is yet another major world view regarding morality. We discussed it, without using the word, when we spoke in Chapter 5 of supreme emergencies and Kant's "strict respect for the rules" option. Deontology has, as its core intuition, the notion that the concept of duty is at the foundation of morality. Ideas like duty, obligation and responsibility are uniquely moral ones—indeed, the most uniquely and clearly moral ones. There might be confusion between morality and mere personal prudence when we talk, like teleologists, about beneficial character traits or when we speak, like consequentialists, about costs and benefits. But there is no mistaking that we are talking about morality when we consider duty and obligation. So these ideas, and not the others, must be the very essence of ethics. Doing one's duty is what is central in ethics. And by "duty," deontologists usually mean that

one's behaviour is permitted, or demanded, by a first principle or general rule regarding morality, such as "Thou shall not lie," or "Honour your father and mother." How does deontology get used by pacifists? The exact nature of the DP element varies from thinker to thinker, but the core notion is that *the very activity of fighting a war violates a foremost duty of morality*. Thus, undertaking such activity can never be justified by appealing to the aims or consequences of the action in question. War, as a means to an end, is thought to be intrinsically unjust. The supposed "justice" of the goal sought, through war, does not redeem the injustice of the means used to pursue it. There must be consistency between means and ends. War ought never to be resorted to: there is always some vastly superior option with regard to international dispute-resolution, such as diplomacy, sanctions or organized campaigns of non-violence.

NOT KILLING PEOPLE

Much has been left unsaid in this terse characterization of DP. Depth and detail must be added: *why* does war-fighting violate *which* foremost duty of morality? In my view, the best pacifist consideration of these matters has been offered by Robert Holmes. Holmes deals with this consideration initially by stating that the foremost duty of morality violated by fighting a war is *the duty not to kill other human beings*.²³ But the obvious objection to this claim is that such a duty—though crucially important under normal conditions of life—does not seem to override all other considerations under special, very threatening circumstances. Consider the most obvious example: A brutally attacks B, thereby posing a severe threat to B's life. Provided that A attacks without justification, many people would respond that B may retaliate against A in self-defence, with lethal force if needed. Consider another example: are we not to kill a dangerous terrorist who is credibly threatening the lives of many innocent civilians? Say, one of the 9/11 hijackers while he was in the act? It seems defensible to assert that we may, so that we protect the lives of the innocent.

The essence of this objection has been stated very forcefully by G.E.M. Anscombe, who lambastes pacifism for not distinguishing between "the blood of the innocent" and "the blood of the guilty." The question, as Anscombe would pose it, is: why should we respect the duty not to kill the terrorist when he is guilty of a seriously immoral act, namely, credibly threatening and endangering the lives of many innocent civilians? Do we not also owe the duty of protection, by lethal force if necessary, to those who are being so seriously threatened? After all, if we do nothing, then severe harm, or even death, will befall all these innocents. The terrorist will get his way, even though his way is the morally wrong one. In short, Anscombe's claim is that we have weightier moral reasons to side with the civilians instead of the terrorist, even if that means killing him.²⁴

There is a raft of complex issues, addressed in the rhetorical questions above, which requires a much fuller development. The first concerns the permissibility, perhaps even the right, to kill a person who presents a severe threat either to oneself or to others. Why exactly is this permissible? Does it not, for instance, violate the human rights of the person presenting the threat?

The employment of lethal force against an aggressor is permissible because the victim of the aggression would lose too much if she were not permitted to kill the aggressor. Indeed, the victim could literally lose everything. But perhaps it will be objected that the aggressor, if killed in response to his attack, would also lose everything. So, why may the victim kill the aggressor? The answer seems to be that the aggressor is responsible *for* forcing the victim to choose between her life and that of the aggressor, and it would be not only unreasonable but unfair to bar the victim from choosing her own life.

An agent A is an aggressor when A uses force to violate the human rights of another person, victim V. In violating the human rights of V, A reveals himself to be a severe threat to V, since human rights serve to protect vital human needs. It is an important claim of this book, defended throughout, that the commission of aggression by A against V: 1) justifies V in responding to A with lethal force, if needed; and 2) justifies any third party, T, in employing needed lethal force against A in order to protect V. The key principle at work here—dubbed the “Core Principle on Aggression” (or CPA) in Chapter 2—is thus the following: *the commission of aggression by A against V entitles V, and/or any third party T acting on behalf of V, to employ all necessary means to stop A including lethal force, provided such means do not themselves violate human rights.* Let us briefly remind ourselves of the elements of this complex principle.

Consider the first element, namely, the entitlement of either V or T to respond with the required force against aggressor A. Jan Narveson seems to put this point well when he notes that it is a matter of moral logic that if V has a human right HR to X (say, personal security), then V also has title to employ those means necessary to secure X from serious, standard threats, such as the violent aggression of others. This is required for us to speak of V’s truly having HR at all.²⁵ Thus, if the employment of lethal force against A reasonably seems required to make A desist from committing aggression against, or even killing, V, it follows that V is at least permitted to do so. But how does this first-person permission get extended to the third person?

The extension proceeds on the basis of *the wrongness* of the aggression and *the intent* of the third party to protect the victim from the wrongful aggression. Sometimes victims, for whatever reason, lack the wherewithal to defend themselves effectively from aggression. In such cases, are we to say that their factual deficiency undermines their normative claim that the aggressor either stop or be stopped? The answer, clearly, is no. It is crucial to stress that the normative essence of the victim’s claim is that *the aggressor*

stop or be stopped, and not more narrowly that only she (the victim) be allowed to stop him. This moral reality grounds a third party's intervention in the case, and we applied this reasoning to humanitarian intervention in Chapter 3. It is clear, however, that to be justified the third party's intent can only be protection of V from A.

Consider now more precisely the second element of the principle, namely, the permission to employ *lethal* force against A if required. Many thinkers will be quick to pronounce on the need for a proportionality of force in response to a threat from an aggressor. And this claim is undeniable. But it may be worth stressing how we ought not to succumb readily to pious delusions about first trying to disarm the aggressor and then, *only if* that fails, be allowed to up the ante, perhaps to the point of killing. In situations where such a measured escalation of violent defence is reasonable, obviously it must be employed. But many situations wherein violent aggression occurs are ones which require a very swift and effective response. We cannot hold victims to excessively stringent interpretations of proportionality in such cases: they are, after all, under an immediate, grievous threat to their lives and rights.

NOT VIOLATING RIGHTS

Let us now turn to the crucial third element of our principle, namely, that the violent response of V to A's aggression violates no human rights. The obvious, and important, question here is: why would V's killing A, in response to A's aggression, not violate A's human rights? As the DP pacifist would say: doesn't the above principle CPA actually compound the wrongness of the tragic situation by permitting V to kill A if required? Isn't this all just the delusion that "two wrongs make a right"? There is a new slogan bandied about in this regard: "An eye for an eye leaves us all blind." The response of just war theorists is *no*: V does no wrong whatsoever—violates no rights—by responding to A's aggression with lethal force if required.

The reason grounding this just war claim is that the commission of aggression by A causes A to *forfeit* his human right not to be dealt with violently, or even killed. It must be understood that rights are reasons. *They are not properties of persons, rather, they are reasons to treat persons in certain ways.* From this conception, it involves no great conceptual leap to point out that *reasons to treat persons in certain ways can change*, depending on the circumstances and what they are doing. Provided that one has a non-absolutist, and thus reasonable, conception of human rights as claims no stronger than their justifying reasons,²⁶ forfeiture appears to pose no considerable difficulties. It amounts to nothing more than the claim that *the weight of reasons* in the situation informs us that V does nothing wrong in responding to A's aggression with lethal force if necessary.

Why does V do nothing wrong? What exactly constitutes “the weight of reasons” in this regard? We have already mentioned this, in Chapter 2, while defining aggression, but let’s introduce a quick reminder, since it is vital for our encounter with DP pacifism. First, it is A who is *responsible* for forcing V to choose between her own life and rights and those of A. We can hardly blame V for choosing her own. For, if she does not choose her own, she loses an enormous amount, perhaps everything. Second, it is simply *not reasonable* to expect creatures like us to intentionally suffer catastrophic loss. Third, consider the question of *fairness*: if V is not allowed to use lethal force, if necessary, against A in the event of A’s aggression, then V loses everything while A loses nothing. Indeed, A gains whatever object he desired in violating or killing V. Such is a patently unfair reward of deeply objectionable behaviour. Finally, V’s having rights at all provides V with an *implicit entitlement* to those means and measures necessary to secure her rights, such as the use of force in the face of a severe threat. These four powerful considerations of *responsibility*, *reasonableness*, *fairness* and *implicit entitlement* all unite together in supporting the just war claims that: 1) V *may* respond with lethal force to A’s aggression; 2) V *does no wrong* in doing so; 3) it would be *wrong to prohibit* V’s doing so; and 4) A *bears all of the blame* in the situation.

Once A has stopped his aggression, and poses no imminent threat of renewed aggression, his full set of rights spring forth intact, save for those still deemed forfeit for legitimate reasons of appropriate punishment and restitution for his act of aggression. The notion of “springing forth” is nothing more puzzling or magical than the claim that now the weight of reasons with regard to how we should treat this person has changed. Since he is no longer a clear and present danger to another’s vital needs, for example, he may no longer be killed—though he may, perhaps, still be jailed, fined and/or rehabilitated as appropriate punishment.

INNOCENT AGGRESSORS?

One related topic, which gets mentioned in conjunction with these issues, is that of the so-called “innocent aggressor.” Say, for instance, that C and D are in an elevator together. Unbeknownst to C, D suffers from a very serious mental disorder, which suddenly causes him to attack C. Is C thereby justified in employing lethal force against D? A number of thinkers have denied this, claiming that at best C has an excuse. This is to say that C has done something which is not morally permitted (namely, killing an innocent) yet C ought not to be punished for it because he has an excuse. This excuse is the fact that C could in no way be expected to know what was wrong inside of D’s head, which caused him to attack C.²⁷

These abstract thoughts, on this curious figure of the innocent aggressor, should be applied to a more relevant case. Sometimes pacifists will contend

that soldiers are innocent aggressors—they are not to blame for the wars they fight and many are conscripts; they go further and deny even the excusability of intentionally killing them.²⁸ At the very least, they will assert, there is no moral permission to kill them: the just war theorist still does not have *morality* on his side.

The first thing to be crystal clear about, in response, is the uncontested fact that soldiers *are* aggressors, *regardless* of whether they are conscripts and *regardless* of their own personal attitude regarding the justice of the war they are fighting. They do indeed present themselves as severe threats against the lives and rights of those to whom they are opposed. They are armed with deadly force, and trained to kill for political reasons.

This first fact establishes, at least, a strong *prima facie* (or initial) case in favour of the notion that targeting soldiers with lethal force is morally justified and not merely excusable. After all, it is not as though soldiers can be thought of as being no different from unarmed civilians who do not present themselves as lethal threats.

The only plausible objection to this *prima facie* case is that there can be times when soldiers do disagree profoundly with the cause of their own state in fighting and yet still fight on its behalf for reasons which are outside of their control. But there are complicated issues to be resolved in this regard: if the soldier in question does have these personal objections, why does he continue to fight? Is the raw fact of his conscription (assuming that were the case) sufficient to exonerate him from his culpability as an aggressor? Or does some further story have to be told about what punishments he would have risked by resisting conscription? I do not pretend to have ready answers to these questions, only to insist that the realities at play in this case are considerably more complex than those in the highly contrived case of C and D in the elevator. The burden of proof is on those who would insist that soldiers are innocent aggressors. “Innocent” in what salient sense? It seems a category mistake to say combatants can be innocent, since just war theory and international law *define innocence precisely as non-combatancy*.

My view is that only rarely, if ever, do we come across a genuinely “innocent aggressor” in the heat of battle. Many soldiers are only too glad to fight on behalf of their own country, for good or ill. Conscription does nothing, one way or the other, to shed evidential light on their interior innocence or guilt. And the external fact remains that *they are aggressors*. Thus, states possess an on-the-whole justification in responding to aggressive armed force with forces of their own, for the reasons of reasonableness, fairness and implicit entitlement described above. There may well be exceptional cases where this will mean targeting an innocent aggressor (i.e., a soldier involved in the war, somehow, through no fault of his own) with lethal force. I think, as opined by Helen Brocklehurst, that the closest to an “innocent aggressor” in real life would be a child soldier. Some civil wars in developing countries—especially in Central Africa—have recently conscripted child

soldiers as young as nine or even eight.²⁹ They remain aggressors because they are combatants deploying armed force, yet they are also innocent in the sense that they have been grossly manipulated by cruel adults and have probably not developed intelligent free will and moral capacities. Now, I still think such child soldiers are legitimate targets—you cannot ask them their age while they’re shooting at you—even though the whole affair becomes imbued with tragedy. I understand the problem of child soldiers to boil down to this: they are *not* a case for pacifism, rather, they are a case for creating a new category of *jus in bello* war crime. Generals and officers caught using child soldiers to execute their will should be arraigned on severe charges for it after the war.

NEVER KILLING THE INNOCENT

DP pacifists, however, are not at this point out of options. Holmes, for instance, offers another argument which contends that the foremost duty of morality which is violated by fighting a war is *not* the duty not to kill *aggressive* human beings, but rather the duty not to kill *innocent, non-aggressive* human beings. What is the relevant sense of “innocence” now being employed? To be innocent here means the regular sense of: to have done nothing which would justify being harmed or killed; in particular, it means not constituting a serious threat or harm to other people. It means not being an aggressor. It is primarily in this sense, we have seen, in which civilian populations are thought, by traditional just war theory, to be “innocent” of war and thus morally immune from direct attack during wartime. Even if civilians support the unjust war effort politically, or simply in terms of their personal attitude towards the war effort, they clearly are *not* armed and dangerous aggressors. Only armed forces, and the political-industrial-technological complexes which guide them, constitute serious threats against which threatened people may respond in kind. Civilian populations are morally off-limits as targets.

Holmes contends that this just war criterion of discrimination, with its crucial corollary of non-combatant immunity, *can never actually be satisfied*. For all possible wars in this world—given the nature of military technology and tactics, the heat of battle, the proximity between legitimate and illegitimate targets, and the limits of human knowledge and self-discipline—involve the killing of innocents, thus defined. We know this to be true from history, and have no good reason for thinking otherwise. There simply has never been a war, nor will there ever be a war, without at least some civilian casualties. But the killing of innocent non-aggressive civilians, Holmes says, is always unjust. Therefore, just war theory’s claim that resort to war can be mandated, or at least permitted, by justice conflicts with the supposed moral fact that the very acts constitutive of war in our world are unjust. So, for a pacifist like Holmes, *no war can ever be fought justly, regardless of the ends* (such

as self- or other-defence) *supposedly aimed for*. This is a strong pacifist argument because it does not contest the ends in question: it does not argue whether self-defence, or the defeat of the Nazis, might be morally legitimate causes for killing. It says that, *even if* the cause or goal of the war is just, consistency demands that it *only* be pursued through just means. *But there are no just means*, since they all involve killing at least some civilians who are innocent and non-aggressive. How is a just war theorist to respond to this pointed pacifist challenge, in my view probably the sharpest there is?³⁰

A number of thinkers have sought to defeat this pacifist argument by casting doubt on the utility of employing the concept of innocence in wartime. But a just war theorist subscribing to the *jus in bello* rule of discrimination, with its corollary of non-combatant immunity, will neither want, nor logically be at liberty, to argue in this fashion. It seems that, despite all the residual ambiguities which remain regarding who exactly is “innocent” during wartime, just war theorists are correct to maintain this concept. It is hard to see, for example, how infants could be anything other than innocent during a war, and as such entitled to immunity from direct and intentional lethal force. It is only those who are involved in harming us (i.e., those who are committing aggression against us) that we can justly target in a direct and intentional fashion during wartime.

We know, from Chapter 4, that the way in which traditional just war theory has dealt with this pacifist objection has been through the Doctrine of Double Effect (or DDE). The DDE, recall, is based on the following scenario: assume agent X is considering performing an action A, which will have both good effects G and bad effects B. X is permitted to perform A *only if*: 1) A is otherwise permissible; 2) X only intends G and not B; 3) B is not a means to G; and 4) the goodness of G is worth, or is proportionate to, the badness of B.³¹ Assume now that X is a country and A is war. The government of X, which is contemplating war in response to an unjustified armed invasion by country Y, knows that, should it embark on war, such activity will result in civilian casualties (both in X and Y), even if X manages to vindicate its rights of political sovereignty and territorial integrity. The DDE stipulates that X may still launch such a justified war provided that: 1) this war is an otherwise permissible one of resisting aggression; 2) X does not intend any resulting civilian casualties (but, rather, aims only at vindicating its rights); 3) such casualties are not themselves the means whereby X’s end (namely, vindicating its rights) is achieved; and 4) the importance of vindicating X’s rights is proportionately greater than—or, at least, equal to—the badness of the resulting civilian casualties.

The key just war notion, we saw in the *jus in bello* chapters, is that civilians are *not* entitled to some kind of absolute, or fail-safe, immunity from attack; rather, they are owed neither more nor less than what Walzer has called “due care” from the belligerent government(s) that they not be made casualties of the war activity in question. Civilians are not entitled to

such absolute immunity because the effect of allowing for such absolute immunity would be, essentially, to outlaw warfare altogether—and it is neither reasonable nor fair to require a political community to stand down in the face of an aggressive invasion which threatens the lives and rights of its member citizens.³²

But this is precisely the nub of the DP pacifist's argument. The DP pacifist wants to say that the moral principle of never killing innocents throws a true blanket of immunity over the civilian population. Since just war theory doesn't likewise throw this blanket—but, rather, the thinner, threadbare fabric of “due care”—it does not really believe in civilian immunity. This is true: just war theory *only* endorses due care and *not* complete immunity. Due care means the belligerents must fight in accord with *jus in bello* rules as we have previously defined them and, if indirect and unintended civilian casualties still result, they are justifiable *provided that jus ad bellum* is also met. Here we see that, ultimately, the moral difference between DP pacifism and just war theory remains the “big picture” difference of opinion whether war can ever be justly begun. Just war theory says that, since some causes of war—like resisting aggression—are morally just, this means that *some civilian casualties must be permitted*, provided they happen unintentionally after *jus in bello* gets satisfied. DP pacifism, by contrast, says that *because* civilian casualties cannot ever be permitted—because of the wrongness of killing innocents—this shows that *no causes of war* can be sufficiently moral to start the murderous process. Here, just war theory moves from the top-down, whereas pacifism moves from the bottom-up. How can we adjudicate this vital, central debate?

I believe this is the strongest pacifist challenge to just war theory—war cannot be justly fought, therefore the cause doesn't matter. The injustice of the conduct corrupts the cause and infects the entire war and, indeed, all wars. The only thing for the just war theorist to do is: 1) stress the importance of the cause as *providing the moral context for* the conduct issues; and 2) argue that due care for civilians is morally enough, given the stringency with which it is defined by just war theory, and the remaining need to defeat aggression. In other words, *the cause does matter*, and it affects our evaluation of fair conduct. My perspective is: how else are minimally just states, in our world, to defend themselves, to protect their people, and to vindicate the international system of law and order, save through armed force and the resort to war? And why should states surrender their rights to political sovereignty and territorial integrity? Above all, why should they fail to protect their own people from aggression? *Provided* that the other criteria of just war are fulfilled, then the defence of rights, the protection of people, and the punishment of aggression seem worth the cost of incidental, indirect civilian casualties. It is worth it because, as contended above, it is unreasonable and unfair either to require or expect people not to resist an aggressive invasion of their country by force if required. They would lose too much, perhaps

everything, if they capitulated. And it is not morally compelling that a government fail to perform one of its core functions: to protect its citizens, by force if necessary, from severe threats to their lives and their human rights.

Whereas the DP pacifist wants to insist on the absolute duty never to kill innocent human beings, the just war theorist must disagree—because otherwise the pacifist will win. But how to disagree, since the principle seems so strong? By substituting for the pacifist's simplistic rule another one more responsive to war's complexity, namely, that we must never kill innocent human beings unless: 1) we have just cause to do so; *and* 2) the killing is unintentional and indirect. This is a more complex rule, but we cannot side with simplicity for simplicity's sake. This new rule does preserve a prohibition on killing the innocent, which is very important for any plausible system of ethics. But it can allow genuinely unintended and indirect killing. (We know the DDE and *jus in bello* define indirection and non-intent for us more specifically, as discussed in Chapter 4.) Moreover, this new rule does bring in the reference to the larger context and the issue of the justice of cause, whereas the pacifist principle refuses to do so (perhaps out of concern for what it might introduce). Having more information informing one's rules and principles clearly seems better than less. So, I argue that even DP ultimately isn't good enough to overthrow just war theory because: 1) it is too simple in comparison; 2) it is inflexible and absolute; 3) it ignores the issue of just cause; and 4) it deliberately and irresponsibly prefers less to more information. What DP gains in clarity, it loses in plausibility upon analysis. The operative rule should *not* be "never kill innocent people" but, rather, "never kill innocent people directly, deliberately and without just cause."

A notable consequence of these reflections is that they support the theoretical point made throughout this book, namely, that the categories of just war theory *must* ultimately be tied together into a coherent whole. Here we see another strong reason why: if they're not so tied, they cannot fend off the strongest pacifist challenge. That challenge focuses on *jus in bello* and, to be overcome, the connection between *jus in bello* and *jus ad bellum* must be made. Those denying this connection are thus seriously vulnerable to defeat at the pacifist's hand.

This has been a difficult and challenging section, raising some of the most profound issues of moral theory itself. That's why it was saved until the end of the book. To summarize this section, DP raised a number of important duties, and alleged that just war theory violates them all. But:

- 1 The duty not to kill another person seems questionable, in light of compelling cases of self- and other-defence.
- 2 The duty not to violate rights is not broken by just war theory, which stipulates that war may be fought only in response to aggression. Once aggression has been committed by a state, it forfeits its state rights not to be attacked, for reasons of responsibility, reasonableness, fairness,

and implicit entitlement. Although the people in the aggressor state retain their human rights, these will not be violated, provided that the victim state fights its just war in accord with the laws of war.

- 3 The duty not to kill innocent human beings is likewise not violated by just war theory, owing to its appeal to the doctrine of double effect. The foremost duty just war theory should seek to substitute and enshrine, in this regard, is the duty never to kill innocent human beings directly, deliberately and without just cause.

Summary

The goal of this chapter was to discuss and evaluate the pacifist alternative to just war theory. We described various pacifist arguments with considerable care and charity. But the arguments for TP, CP and DP are, in the final analysis, not as strong as those of just war theory. Pacifism, while well-intentioned, seems, in effect, to reward aggression and to fail to take measures needed to protect people from aggression. Pacifism is also premised on an excessively optimistic view of the world. It does offer an alternative to armed resistance, but the success of this method historically seems deeply questionable. The method of systematic civil disobedience in the face of aggression remains essentially untried, for it has worked only in cases where the target was morally sensitive to begin with. When the target or aggressor is not sensitive, the result of this method is pure speculation. Pacifists hope it will work—and hope is a virtue—but this ultimately makes me wonder very seriously whether pacifism can actually be divorced from religion. It would seem that only under the warm blanket of religious faith could pacifism's prospects, in our rough-and-tumble world, seem promising.

Perhaps that is insightful, but too quick. As in the last chapter, we should remind ourselves not just of pacifism's weaknesses but also of its strengths. Even though I believe pacifism too optimistic to be practical in the realities of our world, I do agree that it is still important to hold on to ideals and do what you can to work towards them. It seems persuasive to say that, ultimately, we'd like to see a peaceful world and for disputes to be resolved without violence and, certainly, without war. Who could disagree with that, at the level of pure ideals? Having that as a long-term ideal can help shape our judgments and guide our actions in the present. While it probably does not trump just war theory—so long as the world remains so insecure and violent—it helps us resist realist pessimism that it is all a hopeless cycle of violent power-seeking. This is one reason why just war theory seems so attractive as a middle-ground option: it is not so optimistic that it is utopian and unresponsive to aggression yet it is not so pessimistic that it refuses to hold communities to a standard higher than their own national interests. In my own efforts at improving just war theory—notably through trying to articulate *jus post bellum*—I must confess to having been motivated by

pacifism's insistence that we shouldn't take war for granted and that we must do something to make the international system more peaceful, such as pro-rights post-war transformation and the evolution of better global governance.

So pacifism can be incorporated into just war theory, just as parts of realism were. Pacifism and *jus post bellum* can find many common causes and support for reform, and pacifism reminds us of ultimate ideals most reasonable people would like to see realized. The other thing pacifism provides, in the meantime, is a rich source of material regarding the last resort rule in *jus ad bellum*. The traditional interpretation of last resort, we saw in Chapter 2, is that after you have tried diplomacy and sanctions, force remains as the final option. Pacifism calls that small triad into question, and offers us many more tools within the anti-aggression tool-box. Some of these tools and tactics of non-violent resistance (general strikes, mass protest, systematic un-co-operation, etc.) may well be smartly deployed in several instances, even though we cannot count on them working against the most ferocious aggressors, like the Nazis. Non-violent tactics, in some instances, *hindered* the Nazis but they didn't *defeat* them. What did was armed force. I see this illustrating the main conclusion here: that pacifism (like realism) does substantially contribute to the ethics of war and peace but it does not—at least, not yet—dislodge just war theory from its central position.

Notes

1. J. Teichman, *Pacifism and the Just War* (Oxford: Basil Blackwell, 1986), 3.
2. J. Sterba, "Reconciling Pacifists and Just War Theorists," *Social Theory and Practice* (1992), 21–38.
3. For more on defining pacifism, see: R. Holmes, *On War and Morality* (Princeton, NJ: Princeton University Press, 1989), 19–49; J. Narveson, "Pacifism: A Philosophical Analysis," in R. Wasserstrom, ed. *Morality and War* (Belmont, CA: Wadsworth, 1970), 63–77; J. Narveson, "Violence and War," in T. Regan, ed. *Matters of Life and Death* (Philadelphia, PA: Temple University Press, 1980), 109–47.
4. *Matthew* 6:44.
5. *Matthew* 11:29 and 26:52.
6. The works of John Howard Yoder (e.g., *When War is Unjust: Being Honest in Just-War Thinking* (Minneapolis: Augsburg, 1984)) offer a good example of a religious justification for pacifism. See also: J.P. Burns, *War and Its Discontents: Pacifism and Quietism in the Abrahamic Traditions* (Washington: Georgetown University Press, 1986); L.S. Cahill, *Love Your Enemies: Discipleship, Pacifism and Just War Theory* (Minneapolis: Fortress, 1994); M.C. Cartwright, "Conflicting Interpretations of Christian Pacifism," 197–213, and T.J. Koontz, "Christian Nonviolence: An Interpretation," 169–96, both in T. Nardin, ed. *The Ethics of War and Peace: Religious and Secular Perspectives* (Princeton: Princeton University Press, 1996); D. Dombrowski, *Christian Pacifism* (Philadelphia: Temple

- University Press, 1991); and S. Hauerwas, *Should War be Eliminated? Philosophical and Theological Investigations* (Milwaukee: Marquette University Press, 1984). On just war theory as part of official Catholic catechism, see <www.vatican.va/archive/catechism> as well as the works of Augustine and Aquinas cited in Chapter 1.
7. R. Holmes, *On War and Morality* (Princeton: Princeton University Press, 1989); R. Norman, *Ethics, Killing and War* (Cambridge: Cambridge University Press, 1995).
 8. P. Roots, *A Brief History of Pacifism from Jesus to Tolstoy* (Syracuse: Syracuse University Press, 1993); P. Brock and N. Young, *Pacifism in the 20th Century* (Syracuse: Syracuse University Press, 1999).
 9. Aristotle, *Nichomachean Ethics*, trans. W.D. Ross (Oxford: Oxford University Press, 1998); P. Foot, *Virtues and Vices* (Berkeley, CA: University of California Press, 1978); A. MacIntyre, *After Virtue* (Notre Dame: University of Notre Dame Press, 1984).
 10. M. Walzer, *Just and Unjust Wars* (New York: Basic Books, 3rd ed., 2000), xvi.
 11. Walzer, *Wars*, 329–36; Holmes, *War*, 260–96; Norman, *Ethics*, 210–15; P. Ackerman and J. DuVall, *A Force More Powerful* (New York: St. Martin's, 2000). This last book was also blended into an extended PBS documentary special by the same title.
 12. G. Sharp, "The Technique of Nonviolent Action," in R. Holmes and B. Gan, eds. *Nonviolence in Theory and Practice* (Long Grove: Waveland, 2nd ed., 2005), 254.
 13. J. Rawls, *A Theory of Justice* (Cambridge: Harvard University Press, 1971), 370–82; Walzer, *Wars*, 329–36.
 14. J. Brown, *Gandhi and Civil Disobedience* (Cambridge: Cambridge University Press, 1977); D. Dalton, *Mahatma Gandhi: Nonviolent Power in Action* (New York: Columbia University Press, 1993); A. Fairclough, *To Redeem the Soul of America* (Athens: University of Georgia Press, 1987); A. Morris, *The Origins of the Civil Rights Movement* (New York: Free Press, 1984); Ackerman and DuVall, *Force*, 61–113 and 305–35.
 15. Walzer, *Wars*, 330–35.
 16. Ackerman and DuVall, *Force*, 207–41; E. Schwarz, *Paths to Freedom Through Nonviolence* (Vienna: Sensen-Verlag, 1959); R. Petrow, *The Bitter Years* (New York: Morrow, 1974); L. Bergfelt, *Experiences of Civilian Resistance* (Uppsala: University of Uppsala Press, 1993); J. Thomas, *The Giant Killers* (New York: Taplinger, 1976).
 17. Walzer, *Wars*, xxii, 330–35.
 18. J. Bentham, *The Principles of Morals and Legislation* (Indianapolis, IN: Hackett, 1981); J.S. Mill, *Utilitarianism* (Indianapolis, IN: Hackett, 1987).
 19. M. Walzer, "The Moral Standing of States: A Response to Four Critics," *Philosophy and Public Affairs* (1979/80), 209–29; T. Nagel, "Ruthlessness in Public Life," in his *Mortal Questions* (Cambridge: Cambridge University Press, 1979), 75–90.

20. J. Keegan, *The Second World War* (New York: Vintage, 1990); M. Walzer, "World War II: Why was this War Different?" *Philosophy and Public Affairs* (1970/71), 3–21; W.V. O'Brien, *The Conduct of Just and Limited War* (New York: Praeger, 1981), 35–65; G. Orwell, *1984* (Harmondsworth: Penguin, 1989).
21. Norman, *Ethics*, 80–93.
22. Narveson, "Pacifism," 62–77.
23. Holmes, *War*, 146–213, esp. 183–213.
24. G.E.M. Anscombe, "War and Murder" in R. Wasserstrom, ed. *War and Morality* (Belmont: Wadsworth, 1970), 41–53.
25. Narveson, "Pacifism," 63–78; Narveson, "Violence and War," 109–47; H. Shue, *Basic Rights* (Princeton: Princeton University Press, 2nd ed., 1996); A. Gewirth, *Human Rights: Essays in Justification and Application* (Chicago: University of Chicago Press, 1982), *passim*.
26. B. Orend, *Human Rights: Concept and Context* (Peterborough, ON: Broadview, 2002).
27. G. Fletcher, "Proportionality and the Psychotic Aggressor," *Israel Law Review* (1973), 367–90.
28. M. Otsuka appears to support this claim in his "Killing the Innocent in Self-Defense," *Philosophy and Public Affairs* (1992), 74–94. It is also present in Holmes, *War*, *passim*.
29. H. Brocklehurst, "Kids 'R' Us? Children as Political Bodies," *International Journal of Politics and Ethics* (2003), 79–92.
30. Holmes, *War*, 146–213.
31. The DDE, thus defined, cannot solve the innocent aggressor/child soldier problem discussed above. Say soldier S is considering shooting soldier T, who under some description is an innocent aggressor. S cannot appeal to the DDE here because, while he might say that he intends only to defeat the aggression and not kill an innocent, and while he might contend that the defeat of the aggression is worth the price, he *cannot* plausibly contend that killing the innocent is not means to his end of defeating the aggression, since the innocent and the aggressor are (by hypothesis) one and the same person. Innocent aggressors, if such there be, must thus be dealt with differently from innocent non-aggressors. Hence my further arguments above.
32. Walzer, *Wars*, 152–59, 257, 277–83, 317–21; Norman, *Killing*, 73–118 and 159–200.